

26STCV10790 26STCV10790

County: los-angeles

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Case Number: 26STCV10790 Hearing Date: July 29, 2026 Dept: 311

SUPERIOR

COURT OF CALIFORNIA, COUNTY OF LOS ANGELES

Civil

Division

Central

District, Stanley Mosk Courthouse, Department 311

Tentative

Ruling

26STCV10790

JAE

YEAL KIM, AN INDIVIDUAL vs JI HYUN CHUNG, AN INDIVIDUAL, et al.

July

29, 2026

8:30

AM

NATURE OF PROCEEDINGS:

DEMURRER OF DEFENDANT JI HYUN CHUNG TO PLAINTIFF'S COMPLAINT.

RULING:

The Court sustains the
unopposed Demurrer, with leave to amend.

Plaintiff may serve and
file a First Amended Complaint (FAC) no later than on August 28, 2026.

Defendant to give notice.

I.

BACKGROUND

On April 6, 2026, JAE
YEAL KIM (Plaintiff) filed a Complaint against JI HYUN CHUNG, YONG SUNG KIM, and
ALL PERSONS UNKNOWN CLAIMING ANY LEGAL OR EQUITABLE RIGHT, TITLE, ESTATE, LIEN
OR INTEREST IN THE PROPERTY DESCRIBED IN THE COMPLAINT ADVERSE TO PLAINTIFFS'
TITLE OR INTEREST OR ANY CLOUD ON PLAINTIFFS' TITLE OR INTEREST THERETO.

Plaintiff lists these Causes
of Action:

1.

QUIET TITLE;

2.

DECLARATORY RELIEF;

3.

CANCELLATION OF INSTRUMENTS AND DAMAGES;

4.

SLANDER OF TITLE; and

5.

FINANCIAL ELDER ABUSE.

Plaintiff alleges that Defendants
induced Plaintiff to execute, as a gift, a Grant Deed to a condominium at 32
South Serrano Avenue #301, Los Angeles, but Defendants subsequently acted
contrary to representations that no transfer of a property interest and no
recording would be done.

On June 8, 2026, Defendants
filed the Demurrer to the Complaint, on grounds emphasizing the fraud must be
specifically pled, and addressing some other claim elements.

Plaintiff filed no
Opposition to this matter.

II. LEGAL STANDARD

A. Demurrer Procedure

Demurrers are to be
sustained where a pleading fails to plead adequately any essential element of
the cause of action. (Cantu v. Resolution
Trust Corp. (1992) 4 Cal.App.4th 857, 879-880.) A complaint does not
necessarily need to be a model of pleading but needs sufficient factual
allegations. (E.g., State v. The Superior Court (2001) 87 Cal.App.4th
1409, 1411.)

B. Quiet Title

The elements of the Cause
of Action are these:

Description of the property;

plaintiff's title or interest and
the basis;

defendant's asserting adverse
claim or antagonistic property interest;

date as of which the
determination is sought; and

prayer for determination of

title.

(Code Civ. Proc., § 761.020. See also

Lucas v. Sweet (1956) 47 Cal.2d 20, 22 [sufficient to plead that plaintiff is the owner of described property, defendant wrongfully claims interest, unless complaint reveals a defect in title]; Leeper v.

Beltrami (1959) 53 Cal.2d 195, 214 ["general rule that a cause of action to quiet title may be stated in general terms."]; Dreher v. Rohrmoser (1955) 134 Cal.App.2d 196, 198 [complainants can specifically plead the invalidity of defendants' legal title and courts may enter such judgment as the equities require]; Lewis v. Superior Court (1994) 30 Cal.App.4th 1850, 1866 [citing Code Civ. Proc., § 761.020 (complaint to quiet title must be verified)]; Leeper v. Beltrami (1959) 53 Cal.2d 195, 216 [in order for Plaintiff to show the required element of having title where there is a contract between the parties, there must be something legally wrong with the contract justifying relief or rescission]; Kroeker v. Hurlbert (1940) 38 Cal.App.2d 261, 267 [requirement to specifically allege quiet title based on fraud applies only where defendants have clear record title]; Tsasu LLC v.

U.S. Bank Trust, N.A. (2021) 62 Cal.App.5th 704, 716 [plaintiffs must file a verified complaint for quiet title naming as defendants all persons having adverse claims to the title and those known to the plaintiffs or reasonably apparent from inspection of the property, and judgment requires joinder of all parties having an interest in the property].)

C.

Declaratory Relief

The elements of the Claim
are these:

Person interested under a written
instrument or a contract; or

a declaration of his or her
rights or duties;

with respect to another; or

in respect to, in, over or upon
property; and,

an actual controversy.

(Code Civ. Proc., § 1060; *Ludgate Ins. Co. v. Lockheed Martin Corp.* (2000) 82 Cal.App.4th 592, 605-606. See also *City of Cotati v.*

Cashman (2002) 29 Cal.4th 69, 80 [“an actual, present controversy must be pleaded specifically” and “the facts of the respective claims concerning the [underlying] subject must be given.”]; *Cordoba Corp. v. City of Indus.* (2023) 87 Cal.App.5th 145, 157 [“There is no basis for declaratory relief where only past wrongs are involved.... [¶] No declaration from the trial court could help the parties prevent a future breach.”]; *Osseous Technologies of Amer., Inc. v. DiscoveryOrtho Partners LLC* (2010) 191 Cal.App.4th 357, 372 [“in a dispute involving an alleged breach of contract, courts may provide declaratory relief under section 1060 if the relief sought would also govern the future conduct of the parties....”]; *Cal.*

Ins. Guar. Ass'n v. Superior Court (1991) 231 Cal.App.3d 1617, 1624 [“availability of another form of relief that is adequate will usually justify refusal to grant declaratory relief” but “[t]he refusal to exercise the power is within the court's legal discretion....”]; *Hood v. Superior Court* (1995) 33 Cal.App.4th 319, 324 [declaratory relief unavailable where duplicates other cause of action].)

D.

Cancellation Of
Instruments and Damages

The elements of the Cause
of Action are the following:

Grantor's
signature was forged, or grantor was unaware of the nature of what is
signed (void deed); or

grantor was
aware of what is executed, but was induced through fraudulent
misrepresentations to deliver the deed (voidable deed).

(*Schiavon v. Arnaudo Brothers* (2000) 84 Cal.App.4th 374, 378; *Fallon v. Triangle Management Services* (1985) 169 Cal App 3d 1103, 1106; *Smith v. Williams* (1961) 55 Cal.2d 617, 620; Civ. Code, § 3412. See also *La Jolla Group II v. Bruce* (2012) 211 Cal.App.4th 461, 477 [“A deed is void if the grantor's signature is forged or

if the grantor is unaware of the nature of what he or she is signing.

[Citation.] A voidable deed, on the other hand, is one where the grantor is aware of what he or she is executing, but has been induced to do so through fraudulent misrepresentations.”[.]

“ ‘Ordinarily a suit to set aside and cancel a void instrument is governed by section 343 of the Code of Civil Procedure.’... The only exception to this rule ... would be as and when fraud or mistake were involved, in which case the three-year period of section 338(4) would apply.” (Robertson v. Superior Court (2001) 90 Cal.App.4th 1319, 1326.)

E.

Slander of Title

The

elements of this Cause of Action are these:

Publication;

without

privilege or justification;

which is false;

and

causes direct

and immediate pecuniary loss.

(M.F. Farming, Co. v. Couch Distributing Co. (2012) 207 Cal.App.4th 180, 198-199 [“If the matter is reasonably understood to cast doubt upon the existence or extent of another’s interest in land, it is disparaging to the latter’s title where it is so understood by the recipient....”], disapproved on other grounds by Baral v. Schnitt (2016) 1 Cal.5th 376, 392; Manhattan Loft, LLC v. Mercury Liquors, Inc. (2009) 173 Cal.App.4th 1040, 1051. But see Glass v. Gulf Oil Corp. (1970) 12 Cal.App.3d 412, 419 [elements are (1) false and unprivileged disparagement, (2) of title to property and (3) resulting in actual pecuniary damage].)

F.

Financial Elder Abuse

A claim for financial

elder abuse includes taking, secreting, appropriating, obtaining, or retaining real or personal property of an elder for a wrongful use, or with intent to defraud, or assisting with those. (Knox v. Dean (2012) 205 Cal.App.4th 417, 423, 431. See also Munoz v. Patel (2022) 81 Cal.App.5th 761, 782–783 [allegations that defendant obtained property of an elder for a wrongful purpose or with fraudulent intent sufficiently stated a claim for financial elder abuse.]; Wood v. Santa Monica Escrow Co. (2007) 151 Cal.App.4th 1186, 1189 [“Section 15610.30, subdivision (a), provides that financial abuse of an elder or dependent adult occurs where a person takes or assists in taking real or personal property of such an adult to a wrongful use or with an intent to defraud, or both.”]; Das v. Bank of America, N.A. (2010) 186 Cal.App.4th 727, 735 [addressing statutory provisions re financial abuse of an elder]; Stebley v. Litton Loan Servicing, LLP (2011) 202 Cal.App.4th 522, 527-528 [“bad faith or intent to defraud is no longer required in elder or dependent adult abuse cases.... But they still must allege at least a ‘wrongful use’ of property.”].)

III.

ANALYSIS

Defendants opine that all

Plaintiff’s claims are based on fraud but fail to plead with specificity, as to how, when, where, to whom, and by what means. Defendants also state that Quiet Title must be verified and plead present title; Declaratory Relief is duplicative and backward-looking; Cancellation is time-barred; Slander of Title claim attacks a privileged recordation; and Elder Abuse alleges no facts of a wrongful taking.

A judge in a civil case

is not “obligated to seek out theories [a party] might have advanced, or to articulate ... that which ... [a party] has left unspoken.” (Mesecher v. County of San Diego (1992) 9 Cal.App.4th 1677, 1686.)

Rarely should judges

sustain demurrers to initial complaints without giving leave to amend. (Tarrar Enterprises, Inc. v. Associated Indemnity Corp. (2022) 83 Cal.App.5th 685, 689.) “If the plaintiff has not had an opportunity to amend the complaint in response to the demurrer, leave to amend is liberally allowed as a matter of fairness, unless the complaint shows on its face that it is incapable of amendment.” (City of Stockton v. Superior

Court (2007) 42 Cal.4th 730, 747.) Courts generally allow at least one time to amend a complaint, after sustaining a demurrer, even without any request for leave to amend. (McDonald v. Superior Court (1986) 180 Cal.App.3d 297, 303.)

Here, Plaintiff filed no Opposition for the Court's consideration. However, applicable policy is to allow at least one opportunity to amend a complaint after a demurrer.

IV.

CONCLUSION

Therefore, the Court sustains the unopposed Demurrer, with leave to amend.